

TENTATIVE RULING(S) FOR August 5, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2435993

RANGEL -V- FLORES

Before the Court are seven (7) motions to compel responses filed by Plaintiffs Marcos and Maria Rangel seeking to compel responses to discovery from Defendant Leonardo Flores.

This action was commenced on December 3, 2024, by Plaintiffs Marcos Rafael Rangel and Maria Elena Rangel (collectively, “Plaintiffs”) on a Judicial Council of California form complaint asserting causes of action for: (1) motor vehicle and (2) general negligence. The Complaint asserts that Defendant Leonardo Flores (“Defendant” or “Flores”) rear-end the Plaintiffs, when their vehicle was stopped at a stoplight at West Mission Boulevard and Avenue, Ontario, on May 28, 2024. As a result, Plaintiffs suffered injuries. On April 4, 2025, Defendant Flores answered with a general denial asserting twenty-one (21) affirmative defenses.

On November 13, 2025, the Court held a trial setting conference where it remarked, “Plaintiff’s counsel represents they have responded to discovery propounded by the Defendant and the Defendant is evaluating a settlement demand from Plaintiff’s counsel. Discovery needs to be propounded and depositions are needed.” The Court set a jury trial for July 19, 2027.

On March 4, 2026, Defendant changed counsel from Joseph Jeziorkowski, Esq., to Lisa L. Renaud, Esq.

On March 25, 2026, Plaintiffs filed these seven (7) motions to compel responses to discovery. The motions seek to compel responses to form interrogatories, special interrogatories, and requests for production for each Plaintiff and a motion to deem RFAs admitted filed by Marcos. The motions included a declaration by Iman Sorat, Esq. detailing the history and seeking sanctions.

On July 23, 2026, Defendant filed oppositions to all motions together with a declaration by Lisa L. Renaud, Esq. On July 29, 2026, Plaintiffs filed a reply.

Analysis

The Iman Sorat declaration states that the discovery was served on November 20, 2026. Defendant was supposed to respond by December 22, 2025. An extension was given until January 12, 2026, then January 26, 2026, February 6, 2026 and then February 27, 2026. On March 4, 2026, 16 days after the deadline to respond, counsel of record requested an additional two-week extension. Plaintiff’s counsel granted the extension making March 18, 2026 the discovery date. No discovery was received and these motions were filed. Iman Sorat, Esq. filed a declaration with each motion seeking attorney’s fees and attesting to the above.

Each opposition stated these motions are moot because verified responses were served on April 14, 2026 and if Plaintiff want further responses, a different motion needs to be filed. Defendant’s counsel argues she substituted into this proceeding on March 4, 2026, and two weeks was not enough time to file responses. These motions were filed on March 25, 2026. Therefore, sanctions are not warranted and Defendant acted with substantial justification. Lisa Renaud, Esq. submitted a declaration reiterating the above. She also stated that Defendant approached Plaintiffs and asked them to take these motions off calendar—which Plaintiffs denied. The sanctions request are unreasonable.

The reply argues that the motions were filed because Defendant failed to serve responses to discovery for nearly five months. A party cannot serve months-late responses only after a motion compels them and

thereby escape the sanctions the Discovery Act makes mandatory. (Cal. Rules of Court, rule 3.1348(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–411.)

Weil & Brown, California Practice Guide: Civil Procedure Before Trial [The Rutter Group] ¶ 8:1137, et seq states:

[8:1137] **For FAILURE to respond:** If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. [CCP § 2030.290(b); see *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 CA4th 390, 404, 55 CR3d 751, 760 (citing text)]

The motion to compel may be heard even if *tardy responses* are served *after* the motion is filed. Unless the propounding party takes the matter off calendar, the court may determine whether the responses are legally sufficient and award sanctions for the failure to respond on time. [*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, supra, 148 CA4th at 410-411, 55 CR3d at 765]

Many courts will not rule on the adequacy of the responses filed before the hearing, because those issues have not been briefed, there is no separate statement as to those issues, and usually the parties have not met and conferred in an effort to reduce issues to be decided. Those courts still will decide the sanctions issues.

Sanctions. These motions is governed by the provisions of Code Civ. Proc., §§ 2030.290, 2031.300. The statutory provisions point to the Court’s authority to award as sanctions to the moving party, reasonable expenses and attorney fees related to the motions to compel. “Reasonable expenses” have been held to include the time that moving party’s counsel spent in researching and preparing the motions, as well as the court time spent in connection with the hearing of the motions. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) As stated in Code Civ. Proc., §§ 2030.290 (c) and 2031.300(c), the Court’s discretion to refuse to impose sanctions is limited. The court must either find that the party subject to the sanction “acted with substantial justification,” or that other circumstances make the imposition of

the sanction unjust. Thus, under these provisions, unless one of these excuses is shown, the Court may not refuse to impose the monetary sanction, and the burden is on the losing party to prove such excuse. (*Kayne v. The Grande Holdings Ltd.* (2011) 198 Cal.App.4th 1470, 1476.) Specifically, regarding “substantial justification,” the losing party must show a justification that is clearly reasonable and well-grounded in both law and fact. (See, e.g., *Doe v United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.)

Each motion seeks \$1,560 in sanctions for two hours at \$750 plus the \$60 motion fee. That’s \$10,920 plus \$420 in motions fees which in this Court’s view are excessive for seven pro forma motions. Plaintiffs, of course, are entitled to discovery. They should not have had to wait as long as they did. However, new counsel had just substituted into this action and responses were filed a little over a month later (March 4-April 14). The Court is not persuaded that defendant acted with substantial justification, at least not on this record. The Court finds the delay excessive and unreasonable. **Therefore, the Court awards Plaintiff a total amount of \$1,000—which includes \$420 in motion fees—for all the motions.**

RULING

The Court finds the motions moot since Defendant has responded with verified response. The Court awards Plaintiff a total of \$1,000 in sanctions for all motions which includes the motion fees.